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**UNITED STATES DISTRICT COURT
DISTRICT OF NEVADA**

MARK JOSEPH NEJMEH
Plaintiff,
v.
THERIVA BIOLOGICS, INC.,
Defendant.

Case No. 3:26-cv-00705-ART-CSD

**DEFENDANT THERIVA BIOLOGICS, INC.’S
SUPPLEMENTAL BRIEF IN SUPPORT OF
ITS OPPOSITION TO PLAINTIFF’S
EMERGENCY MOTION FOR TEMPORARY
RESTRAINING ORDER AND/OR
PRELIMINARY INJUNCTION AND
RESPONSE TO PLAINTIFF’S REQUESTS TO
FILE SUPPLEMENTAL EXHIBITS**

ORAL ARGUMENT REQUESTED

Defendant Theriva Biologics, Inc. (“Theriva” or the “Company”), by and through its attorneys of record, respectfully submits this supplemental response to the Emergency Motion for Temporary Restraining Order, Preliminary Injunction, Expedited Discovery, and Order Shortening Time (ECF No. 2) (the “Emergency Motion”) filed by Plaintiff Mark Joseph Nejme (“Plaintiff”) pursuant to the Court’s September 30, 2026 Minute Order (ECF No. 20).

In the days and weeks since filing his TRO, Plaintiff has filed numerous additional requests for leave to file supplemental exhibits (which are really just additional briefing and declarations purportedly in support of his TRO) and other procedurally improper motions buried within those demands. In response, this supplemental brief addresses: (i) the newly filed pages of the Complaint, (ii) the new relief requested in Plaintiff's Reply (ECF No. 28), (iii) Plaintiff's requests for leave to file supplemental exhibits in support of his TRO (ECF Nos. 10, 11, and 22), and (iv) the additional motions buried in Plaintiff's requests for leave to file those exhibits (ECF Nos. 10 and 11). Theriva incorporates its Opposition (ECF No. 21-1) by reference. A single theme runs through each of Plaintiff's filings: Plaintiff seeks relief untethered to the claims he has pleaded, which challenge only the June Proxy Statement and the December 2025 special meeting. (ECF No. 21-1 at 2-3, 4 n.1, 13-14, 17-18.) None of Plaintiff's newly filed material alters the conclusion that the Emergency Motion should be denied.

What the new filings do show is that Plaintiff's serial, procedurally improper submissions are a burden on the Company and the Court, and they need to stop. In this District, "[t]he filing of emergency motions is disfavored because of the numerous problems they create for the opposing party and the court resolving them." *Cardoza v. Bloomin' Brands, Inc.*, 141 F. Supp. 3d 1137, 1140 (D. Nev. 2015). Plaintiff has compounded those burdens many times over. He is a disgruntled stockholder who does not like how the Company is run, but that is not a cognizable claim, much less one warranting the extraordinary relief he demands. Theriva is a clinical-stage cancer drug development company. It has no product revenue and depends on outside financing to survive. (ECF No. 21-1 at 4-5.) Plaintiff's sweeping requests to freeze the Company's corporate activity would cut off that lifeline and threaten the Company's existence, and every dollar spent answering his ever-expanding filings that are untethered to an asserted, cognizable claim is a dollar diverted from developing therapies. If Plaintiff disagrees with management's decisions, his remedy is to sell his shares, not to enlist this Court to halt the business of a company owned by thousands of other stockholders.

I. RESPONSE TO NEW ALLEGATIONS IN THE COMPLAINT.

On October 1, Plaintiff filed his corrected complaint containing the pages missing from the original filing. (ECF No. 23.) These pages generally describe the nature of the suit and the lead up to

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1 the December 2025 scheduled shareholder meeting that failed to reach quorum. (*See generally* ECF
2 No. 23 ¶¶ 1-58.) The newly filed allegations largely concern the December 15, 2025 special meeting,
3 including an alleged 34% versus one-third quorum discrepancy in the December proxy, the purported
4 adjournment to December 22, 2025, and the post-meeting telephone call from Theriva’s counsel. (*See,*
5 *e.g.*, ECF No. 23 ¶¶ 5-6, 31-32, 41-50.) The Opposition already addressed each of these subjects.
6 (*E.g.*, ECF No. 21-1 at 5-6, 13-15 & n.2.) As the Opposition explains, the December 15 meeting was
7 never convened due to a lack of quorum and has no bearing on the validity of the separately noticed,
8 separately solicited August 3, 2026 vote, which had a new record date and a new proxy. (*Id.* at 3, 14-
9 15.) Not only is the December 15 meeting legally irrelevant, the quorum discrepancy also made no
10 difference because the shares represented at that meeting fell short of both the one-third and 34%
11 thresholds by millions of shares. (*Id.* at 14-15 n.2.) And the post-meeting call was not a “proxy” or
12 solicitation with any legal effect and cannot serve as an essential link to a vote nearly eight months
13 later. (*Id.* at 13-14.)

14 These missing allegations all go to Plaintiff’s apparent theory that Theriva was obliged to treat
15 the December special meeting—which was never convened due to failure to reach quorum—as a final
16 defeat of the warrant proposal. But such a theory makes no sense. The December meeting and the
17 other later called but not convened special meetings are irrelevant to the validity of the August 3, 2026
18 vote. The Inducement Agreement between Theriva and the New Warrant holders required Theriva to
19 call a meeting every sixty days until approval for issuance of the New Warrant Shares was obtained.
20 (ECF No. 15-1, Shallcross Decl. ¶ 7; ECF No. 15-2, Ex. 1 at 2.) Indeed, Plaintiff concedes that “later
21 meetings could be independently called under the inducement agreement and Nevada law” and that
22 “[c]ancellation of 22 December does not automatically extinguish all authority to call another
23 meeting.” (ECF No. 23 ¶ 114.) That is, the December 15 meeting and the other special meetings that
24 were later called are entirely irrelevant to the final approval of the New Warrants. Nothing in the
25 newly filed pages to Plaintiff’s Complaint alters these conclusions, or rebuts Plaintiff’s failure to show
26 irreparable harm, imminent injury, or a likelihood of success on the merits.

1 **II. RESPONSE TO NEW RELIEF REQUESTED IN REPLY.**

2 Plaintiff also filed his reply in support of his Emergency Motion on October 2, 2026. (ECF
3 No. 28.) Therein, Plaintiff articulates new relief to which he believes he is entitled, specifically:

4 Plaintiff respectfully asks the Court to: (1) enter a one-year moratorium during which
5 no New Warrant may be exercised and no exercise price lowered; no reverse stock
6 split may be carried out without a stockholder vote on a corrected, plain-language
7 proxy, with remote attendance; and no preferred stock may be issued as a poison pill
8 to block a change of control; (2) order Defendant to preserve the records of the
9 December 15, 2025, February 11, 2026, April 9, 2026, June 5, 2026 and August 3,
10 2026 meetings, and grant leave to serve the narrow Broadridge subpoena described
above; (3) require no bond, or a bond of \$100; (4) if Defendant calls a re-vote, require
that it be held on a corrected, plain-language proxy, with remote attendance, an
independent inspector of elections, and Proposal 5 voted on separately; and (5) allow
this case to proceed to the jury trial Plaintiff has demanded. . . .

11 Because this relief was not requested in the Emergency Motion, it should be denied on that basis
12 alone. *Knapp v. Miller*, 873 F. Supp. 375, 378 (D. Nev. 1994) (“The Court does not and will not make
13 a practice of addressing the merits of issues first raised in a reply, as the opposing party is not afforded
14 any opportunity to respond to new issues raised in a reply, which is ordinarily the last document
15 submitted prior to the Court’s ruling on a motion.”); *see also Jefferson v. Barrick*, 2026 WL 1396601,
16 at *1 (D. Nev. May 18, 2026) (“Plaintiff is advised that her pro se status does not allow her to disregard
17 the rules of the court. All litigants, including those appearing pro se, must comply with the Federal
18 Rules of Civil Procedure and the Local Rules of Practice for the United States District Court, District
19 of Nevada. . . . Failure to comply with court orders or rules may result in the issuance of sanctions,
20 which may include dismissal of this action.”). If the Court does not reject the request for new relief
21 made for the first time in the reply, it should be denied for the following reasons:

22 *First*, a one-year moratorium on exercise of the New Warrants is unwarranted for the same
23 reasons the fourteen-day restraint Plaintiff initially requested is: no holder has delivered a notice of
24 exercise, no New Warrant Share has issued, and with the stock trading well below the \$0.54 exercise
25 price, there is no economic reason for any holder to exercise. (ECF No. 21-1 at 10, 15.) Any dilution
26 of Plaintiff’s approximately 0.2% stake would be quantifiable and compensable by damages, not
27 irreparable. (*Id.* at 15-16.) A year-long freeze would also restrain the contract rights of warrant holders
28 who are not before the Court and place a federal restraint on a stockholder-approved financing. (*Id.* at

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16-17.) The requested restraints on reverse stock splits and preferred stock are untethered to any pleaded claim and rest on speculation about hypothetical future corporate actions. (*See id.* at 4 n.1.) As noted, any restraint on the Company’s ability to continue its normal course operations and engage in any lawful corporate action risks putting the Company out of business because as a clinical-stage cancer drug development company the Company has no product revenue and relies on outside investments for survival. (ECF No. 21-1 at 4-5.) Given that substantial risk, the balance of equities plainly militates against any restraint against the Company.

Second, preservation orders and a Broadridge subpoena are unnecessary for the reasons stated in Part IV below; the Broadridge reports Plaintiff seeks are already attached to the Shallcross Declaration. (*See* ECF No. 21-1 at 17-18.)

Third, Plaintiff’s proposed \$100 bond bears no relationship to the potential harm of freezing the exercise of the New Warrants covering up to 16,184,560 shares or other corporate actions which may be necessary to sustain the Company; any relief (and Plaintiff is not entitled to any) should be conditioned on a substantial bond. (*Id.* at 17.)

Fourth, Plaintiff’s proposed conditions on a re-vote confirm that the dispute is headed toward mootness. Theriva intends to call a new stockholder vote on the Warrant Exercise Approval using corrected proxy materials, which will provide the corrective solicitation Plaintiff seeks. (*Id.* at 3, 18.) Plaintiff identifies no claim or authority that would entitle him to dictate the manner in which Theriva conducts its stockholder meetings beyond correcting the scrivener’s error he challenges.

Finally, whether this case may proceed to a jury trial has no bearing on whether emergency injunctive relief is warranted.

III. SUPPLEMENTAL EXHIBITS IN SUPPORT OF THE EMERGENCY MOTION.

Plaintiff has also filed hundreds of pages of supplemental “summaries,” “descriptions,” and declarations purportedly under Local Rule 7-2(g), in support of his Emergency Motion. Initially, as noted, even though Plaintiff is proceeding pro se, Plaintiff must comply with the applicable procedural rules. His seriatim filings and continuing attempts to add to the “record” of his emergency application violate various procedural rules and make it difficult for the Company to cogently respond. Making matters worse, Plaintiff admits that at least certain of his filings “would not decide any disputed fact,

1 establish any inference, or grant the interim relief” (E.g., ECF No. 10 at 1, ¶ 2)—which begs the
 2 questions of why Plaintiff is filing them in the first place and why the Company and the Court must
 3 expend time and resources sifting through them. At a high level, Plaintiff has filed:

- 4 • ***SA through SD (ECF No. 10 at pp. 21 – 63) and SF through SN (ECF No. 10 pp. 72-130).***¹
 5 These 102 pages contain expert-report-like summaries, citing documents not included as
 6 exhibits, on the following subjects: reverse stock splits, warrant transactions, and capital use
 7 (SA); patent disclosures and market activity (SB); Theriva’s financial program and strategic
 8 record (SC); funding since 2021 (SD); the Grifols deferred contingent consideration (SF); the
 9 May 2025 warrant financing and its accounting (SG); control provisions and a potential change
 of control (SH); debt obligations and cash (SI); legal authorities on interim relief for warrants
 and rights plans (SJ); price, volume, and company news (SK); valuation and purported
 “motive” (SL); insider-led acquisition models taught at business schools (SM); and Plaintiff’s
 “internal disassembly” theory (SN).
- 10 • ***SQ & SR (ECF Nos. 11-6, 11-1).*** Exhibits SQ and SR are Plaintiff’s cumulative fifteen-page
 11 narrative purportedly showing that the Court should consider Heat Biologics to be a
 12 comparator to Theriva.
- 13 • ***SS (ECF No. 11-7).*** Exhibit SS is an eleven-page narrative describing Theriva’s Board and its
 14 committees, where Theriva’s directors have served, the identities of the holders of the New
 Warrants, and additional documents Plaintiff states he needs.
- 15 • ***Supplemental Summary in Support of ST-1 and ST-2 (ECF No. 22 pp. 2-10).*** This nine-page
 16 “supplemental summary” of a December 3, 2025 prospectus supplement and a May 7, 2025
 17 Securities Purchase Agreement (filed with Theriva’s May 8, 2025 Form 8-K) is, in reality,
 improper briefing arguing that Theriva’s board is mismanaging the Company, which claim has
 not been asserted.

18 There is no good cause under LR 7-2(g) for Plaintiff to supplement his Complaint or Emergency
 19 Motion with these documents, and the Court should not consider them for three reasons:

20 *First*, the summaries are not part of the pleadings and cannot expand them. Plaintiff concedes
 21 that the supplemental materials do not amend the Verified Complaint and add no claim or party. (ECF
 22

23 ¹ Theriva cannot tell from the filing whether Supplemental Exhibit SE (ECF No. 10 pp. 64-71) was
 24 prepared by Plaintiff or a third party. It purports to summarize “market data” but it is not clear who
 summarized that data or when that summary was prepared.

25 Supplemental Exhibit SO (ECF No. 10 pp. 131-140) appears to be a summary of patents prepared by
 26 someone, but again it is not clear who summarized this data. Regardless, the ownership or nature of
 27 patents held by Theriva is not at issue in Plaintiff’s complaint or Emergency Motion.

28 Supplemental Exhibit SP (ECF No. 10 pp. 141-194) appears to contain a copy of a patent. Theriva
 takes no issue with this exhibit, but it clearly has no bearing on the merits of the Emergency Motion.

No. 10 at 1-2; ECF No. 11 at 2.) Yet they are offered to support relief that the Complaint never seeks, including restraints on preferred stock, rights plans, reverse stock splits, and reverse mergers, and advance notice of mergers and asset transfers. (ECF No. 11-8 at 1-2; ECF No. 22 at 7-8.) A TRO must rest on the claims actually pleaded, and Plaintiff cannot use unpleaded theories in narrative exhibits to show a likelihood of success on claims he has not brought.

Second, the summaries are not reliable evidence. They are of unclear authorship, unsigned, and undated, and several are marked as drafts, such as “VERSION 1 – FOR REVIEW BEFORE ANY FILING.” (E.g., ECF No. 10 at 35, 44; *see also id.* at 48.) Plaintiff himself acknowledges that his charts “are demonstratives generated from cited public records,” “are not independent evidence,” and would have to be authenticated and supported “by an admissible data source or a competent declaration” before use. (*Id.* at 36.) His market analyses rely on daily data downloaded from Yahoo Finance, apply “[n]o controls” for market, sector, or other news, and concede that “[a] qualified financial expert should determine whether a litigation-grade event study is appropriate.” (*Id.* at 41.) And Plaintiff disclaims that his exhibits establish any wrongdoing, any executed merger or counterparty, or any active rights plan. (*Id.* at 83, 87, 128; ECF No. 11-1 ¶ 3; ECF No. 11-6 ¶ 2; ECF No. 11-7 ¶ 2.) Plaintiff is not a qualified expert, and the summaries offer lay speculation, not admissible opinion. *See* Fed. R. Evid. 602, 701, 702.

Third, the summaries are not otherwise part of the record. They have been submitted only with motions for leave to file, and Plaintiff himself asks the Court to consider them “only for the purposes the Court finds proper.” (ECF No. 10 at 1, 16.) Plaintiff further acknowledges that the materials cite documents that are not attached, and that the records needed to test his theories would have to come through discovery. (E.g., ECF No. 10 at 30, 87; ECF No. 11-1 at 5.) Summaries of documents that are not before the Court, prepared by an unidentified author for litigation, are not a substitute for actual evidence demonstrating the likelihood of imminent irreparable harm. *See, e.g., Concord Music Grp., Inc. v. Anthropic PBC*, 772 F. Supp. 3d 1131, 1136 (N.D. Cal. 2025).

It appears that Plaintiff’s tactic is to put before the Court the complete history of the Company and every corporate action it has taken based on unauthenticated summaries from the internet or AI in the hopes that the Court sifts through it all and uncovers some cognizable claim that Plaintiff himself

has not identified or pleaded. But that is not the province of the Court even with a pro se plaintiff. *See id.* at 1137 (“The undefined nature of the relief sought here casts a long shadow over Publishers’ request.”); *see also Green Bldg. Initiative, Inc. v. Peacock*, 350 F.R.D. 289, 292 (D. Or. 2025) (cautioning litigants about the risk of using of AI hallucinations in legal briefing).

IV. ADDITIONAL MOTIONS FOR DISCOVERY AND AN ADDITIONAL RESTRAINING ORDER.

Also buried in ECF Nos. 10 and 11, which are styled as motions for leave to file supplemental briefing, are (i) an Emergency Motion for Limited Temporary Restraining Order and Expedited Verified Disclosure Concerning Blank Check Preferred Stock and Any Shareholder Rights Plan (ECF No. 10 pp. 12-15); and (ii) Plaintiff’s Motion for Leave to Conduct Limited Expedited Discovery from Defendant and the Warrant Holders, and for a Rule 30(b)(6) Deposition of Defendant (ECF No. 11-2). These documents are not filed as separate motions, in violation of LR IC 2-2(b), but are styled as exhibits to motions for leave. (*See generally* ECF Nos. 10, 11.)

The Emergency Motion for Limited Temporary Restraining Order and Expedited Verified Disclosure Concerning Blank Check Preferred Stock and Any Shareholder Rights Plan (ECF No. 10 pp. 12-15) does not seek a restraint on any imminent harm. Rather, it asks the Court to order Theriva to report “whether it or its board has” adopted a plan or “preferred-stock designation intended to affect control” of the Company and, *if such a plan exists*, to “temporarily restrain Theriva” from implementing it. (ECF No. 10 p. 12 at ¶¶1-2.) Plaintiff acknowledges that the closest District of Nevada authority “disfavors relief directed only at a possible future plan.” (ECF No. 11-8 at 2 (citing *Horwitz v. Sw. Forest Indus., Inc.*, 604 F. Supp. 1130 (D. Nev. 1985)).) He also admits he conducted no meet-and-confer before filing it. (ECF No. 10 at 5, 14.) Because there is no plan to restrain, no imminent harm, and no pleaded claim, the motion should be denied.

The Motion for Leave to Conduct Limited Expedited Discovery from Defendant and the Warrant Holders, and for a Rule 30(b)(6) Deposition of Defendant (ECF No. 11-2) fails for the reasons stated in the Opposition. (ECF No. 21-1 at 17-18.) The only fact relevant to the requested restraint, the current status of the New Warrants, is already established by sworn declaration: no notice of exercise has been delivered and no New Warrant Share has issued. (*Id.*) And the proposed discovery

1 is anything but “limited.” It seeks document requests, Rule 45 subpoenas to the eight non-party
 2 warrant holders, and a Rule 30(b)(6) deposition, with requests reaching back to January 2020 and
 3 incorporating by reference every records request in Supplemental Exhibits SA through SR. (ECF
 4 No. 11-2 at 1-2, 4, 8-11.) Those requests target subjects with no connection to any pleaded claim,
 5 including directors’ outside business relationships, a director’s consulting agreements from 2015 to
 6 2020, 2021 and 2022 preferred-stock transactions, and Theriva’s confidential strategic review. (*Id.*
 7 at 9.) Expedited discovery of this scope, untethered to the pleadings and aimed largely at non-parties,
 8 is precisely the type of fishing expedition into Plaintiff’s unpleaded theories that good cause cannot
 9 justify.

10 To the extent either motion is entered on the docket as a standalone motion, Theriva requests
 11 the opportunity to file a full response. Theriva respectfully submits, however, that the Court should
 12 deny the Emergency Motion and all related requests now, so that the Company can return its attention
 13 and resources to its business rather than to an endless stream of filings untethered to Plaintiff’s pleaded
 14 claims.

15 **DATED:** October 7, 2026.

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